

Chameli Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 February 2025 · 2025:AHC:15051-DB · WRIT - C No. 30909 of 2024 · **Writ disposed; hearing directed on disputed bill under clause 6.4.**

HEADNOTE

Where supply had already been restored but the consumer still disputed the bill, the Court disposed of the writ by directing the licensee to grant a hearing on that bill under clause 6.4 of the U.P. Electricity Supply Code, 2005 and to pass a reasoned order.

FACTUAL SUMMARY

Chameli Devi challenged a 20 July 2024 communication that a pole had been reinstalled and electricity restored, asserting that neither had occurred. On 23 September 2024 a Division Bench granted the distribution licensee five days for written instructions with photographs and reports, expecting restoration if still required. At the later hearing the licensee's counsel stated that supply had been restored. The petitioner accepted that fact but complained that the bill raised against her had not been waived.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.4

hearing on disputed bill

HOLDING

Once restoration of supply is conceded, a remaining dispute that the bill raised has not been waived is to be decided by the licensee after granting the consumer an opportunity of hearing under clause 6.4 of the U.P. Electricity Supply Code, 2005, followed by a reasoned order; the writ is disposed of on that direction without a merits finding on the bill. ¶ 3

PRINCIPLE TAGS

relegate-to-statutory-remedy

Where supply had already been restored but the consumer still disputed the bill, the Court disposed of the writ by directing the licensee to grant a hearing on that bill under clause 6.4 of the U.P. Electricity Supply Code, 2005 and to pass a reasoned order. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL RAISED AFTER RESTORATION IS LIABLE TO BE WAIVED

Remitted for hearing and a reasoned order under clause 6.4; no merits finding. ¶ 2-3